Brian Beals, LLC

Nonvisual Access & ADA Title II · Independent Evaluation & Conformance Reporting

Remote delivery · on-site in Maryland as needed
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MARYLAND-CERTIFIED VSBE VB26-100715 · SBA-CERTIFIED SDVOSB

Two obligations, one body of evidence. Maryland has required nonvisual access in state IT procurement since 2005: under **State Finance & Procurement §3.5-311** the Nonvisual Access clause goes into every IFB, RFP, and contract for new or upgraded ICT, the vendor **warrants** equivalent nonvisual access when it bids, and DoIT reviews conformance **within 18 months of award**. A vendor that fails that review has **12 months to remediate at its own expense**, then faces a civil penalty and an obligation to **indemnify the State** for liability arising from the noncompliant technology. Separately, the DOJ rule under ADA Title II requires WCAG 2.1 Level AA by **April 26, 2027** for public entities serving 50,000 or more, and **April 26, 2028** for smaller entities and special districts.

A veteran-owned consultancy that establishes where an agency or a prime actually stands against Maryland's nonvisual access requirement and the Title II deadline, then says what to fix first. The deliverable is an Accessibility Conformance Report: every WCAG 2.1 Level A and AA success criterion marked and evidenced, dated and signed. Delivered by one principal with an enterprise data and automation background.

SERVICES

Nonvisual Access Conformance Evidence

Independent evaluation of a deliverable against COMAR 14.33.02 and WCAG 2.1 Level AA, producing the evidence a contractor needs when DoIT reviews conformance within 18 months of award. A prime signs the NVA warranty at bid time; this is the work that makes the warranty defensible eighteen months later, before the review rather than during it.

Title II Readiness Assessment

Automated scanning plus manual sample testing, including keyboard and screen reader checks, against WCAG 2.1 Level AA. Review of the published accessibility statement, coordinator designation, and grievance procedure against what the rule requires. Deliverable is an Accessibility Conformance Report in VPAT 2.5 format, the same document you already require from your software vendors, plus a prioritized roadmap with effort bands and a one-page summary suitable for a board or budget request. Two to four weeks.

COMPANY SNAPSHOT

Maryland VSBE	Certified
VSBE #	VB26-100715
VSBE Term	08/2026 – 08/2029
Maryland CSB #	SB26-100712
eMMA Vendor	SUP1105247
UEI	NJLEHNAQATJ6
CAGE	22XM3
Founded	2026 · Florida LLC

Certified Veteran-Owned Small Business Enterprise (MD Office of Small, Minority & Women Business Affairs)

STANDARDS APPLIED

Maryland NVA	COMAR 14.33.02
NVA Clause	COMAR 21.05.08.05
Statute	SF&P §3.5-311
WCAG	2.1 Level AA
ADA Rule	28 CFR Part 35
Also	Section 504 · 508

Document Inventory & Triage

Catalog every PDF and document across the agency's web properties, then classify each one: retire, replace with an accessible HTML page, remediate, or leave. Remaining items are prioritized by page traffic, program criticality, and exposure. Deliverable is a scoped work order a remediation vendor can execute against, so per-page remediation spend goes to documents that are actually in use.

Program & Policy Setup

Accessibility statement naming the standard and conformance level, coordinator designation, grievance procedure, self-evaluation documentation, procurement language requiring a VPAT or ACR before purchase, and content governance so newly published material stops regressing.

SCOPE COVERED

Web	**Pages & templates**
Documents	**PDF & Office**
Forms	**Online & fillable**
Mobile	**Apps & responsive**
Media	**Captions & transcripts**
Third party	**Vendor VPAT review**

CATS+ FIT

FA 2	**Web & Internet Systems**
FA 10	**IT Mgmt Consulting**
Posture	**Subcontract to a master**

DIFFERENTIATORS

- **Maryland's requirement is older and stricter than the federal one**. The nonvisual access warranty has been in state IT contracts since 2005 and carries a post-award review. Teams that plan only for the 2027 ADA date are planning for the later of the two obligations.
- **No product to sell**. No overlay, no platform license, no per-page remediation quota. The recommendation follows the finding.
- **Evaluation only, never the remediation**. A conformance claim written by whoever built or repaired the site is self-assessment. Staying out of the repair work is what lets the report mean something, and it gives a remediation vendor a specification to bid against rather than a per-page quote nobody can check.
- **A tagged PDF is not a conforming PDF**. Most checkers ask only whether tags exist. A document can have them and still be unreadable: no headings, tables with no header cells, images with no alt text. That is what an auto-tag pass leaves behind, and often what an agency receives after paying to have it fixed.
- **The report says what it did not check**. Reading order, meaningful alt text, and focus order are not machine-detectable, and asserting conformance on automated evidence alone is how a report becomes the exhibit. An unanswered criterion reports as Not Evaluated, never as Supports.
- **Set-aside vehicle**. Certified VSBE, so participation counts against the 3% statewide goal and against the VSBE subcontract goals written into task orders.

DEMONSTRATED CAPABILITY

- **Conformance report issued:** a full evaluation of brianbeals.com against all 50 WCAG 2.1 Level A and AA success criteria, remediated to conformance and documented in an Accessibility Conformance Report in VPAT 2.5 format. Every defect found was fixed and re-verified, including a skip link that scrolled the page without moving keyboard focus.

- **Purpose-built evaluation tooling:** an assessment engine combining automated rule checking with four checks the scanner has no rule for, among them reflow at a true 320-pixel viewport, both light and dark color schemes, live-region preconditions, and focus-visible under a real Tab press. Documents are read rather than counted: the tag tree is walked to find missing alt text, tables with no header cells, and tagged files with no headings at all. Each document is then checked against veraPDF, the ISO reference validator for PDF/UA-1, which finds what no tag count can: content drawn on the page and never tagged, and therefore invisible to assistive technology rather than merely badly described. Those results are reported as WCAG success criteria and never as a PDF/UA verdict, because the obligation is WCAG 2.1 AA and PDF/UA is a wider standard nobody here is held to. A regression suite runs against fixture pages encoding known defects, so the engine is tested rather than trusted.
- **Volume screening in practice:** 22 public entities verified and sampled across four counties, producing per-entity findings mapped to specific success criteria. Third-party widget defects are attributed to the vendor rather than to the entity, so an agency is never handed a finding it cannot act on.
- **Large-scale content inventory:** automation that polls a government opportunities API, filters and classifies records by code and keyword, scores them, and publishes a live dashboard. The same pattern applied to a document library.
- **Scheduled pipelines:** data screeners running on a schedule via GitHub Actions and publishing to public web endpoints without manual intervention.
- **Modern web delivery:** a Next.js site on Vercel with CI/CD deploys, plus multiple public sites maintained under version control.

Method. Findings are measured, not estimated. Where a check cannot be made honestly, for example text over a photograph where the background color is unknowable from the page, it is reported as indeterminate rather than asserted. A finding a client can disprove costs more than a finding never made.

Past performance. Newly formed, with no Maryland contract past performance to date. The reference implementation above is the firm's own site, evaluated and remediated end to end under the same method proposed here, with the resulting report available on request. Manual assistive-technology validation at depth and high-volume document remediation are delivered with a specialist partner. Available to subcontract the assessment, inventory, and program layer under a CATS+ master or a remediation prime.

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